



Edinburgh Trades Maiden Fund Order Confirmation Act 1969

CHAPTER XX

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ELIZABETH II



1969 CHAPTER XX

Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Edinburgh Trades Maiden Fund.

[25th June 1969]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Enacted by the Queen's most Excellent Majesty,
with the advice and consent of the Lords Spiritual and
Temporal and Commons, in this present Parliament assembled,
by the authority of the same, as follows:—

The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed.

This Act may be cited as the Edinburgh Trades Maiden Fund Short title.
Confirmation Act 1969.

Confirmation
of Order in
schedule.

SCHEDULE

EDINBURGH TRADES MAIDEN FUND

Provisional Order to constitute a fund for the benefit of the daughters and granddaughters of craftsmen in Edinburgh and others; confer further powers on the Governors of the Trades Maiden Hospital in Edinburgh; and for purposes connected therewith

Whereas in or about the year 1704 the Freemen of the Incorporation of the Craftsmen of Edinburgh unanimously resolved to have an hospital for the daughters and grandchildren of the female sex of deceased craftsmen who were not able to support themselves, and for other maidens who should be presented by persons who should contribute to so good and pious a work:

And whereas upon the 3rd May, 1704, the said Incorporation procured an Act from the Council of Edinburgh approving of their pious and charitable resolution, and declaring they would give encouragement thereto:

And whereas the said Incorporations having purchased some land and yards in Edinburgh fitted out and prepared one of these for an hospital and settled therein twenty-three girls, with a governor and schoolmistress and servants:

And whereas by an Act of Parliament of the 25th March 1707 (hereinafter referred to as "the Act of 1707") the said Incorporations were allowed and authorised to meet as oft as occasion required to make such rules and constitutions for the carrying on of the hospital altogether as they should find just and convenient, and to receive mortifications or donations, the said rules and acts to be made by them being always consistent with the laws of the kingdom and with the acts and constitutions of the city of Edinburgh:

And whereas by the Act of 1707 it was ordained that the said rules and constitutions to be made by the said Incorporations were to be as valid and effectual, to all intents and purposes, for the order governing of the said hospital as if they were particularly enacted and set down in the said Act:

And whereas following the enactment of the Act of 1707 Mary Erskine, relict of James Hair, druggist, burgess of Edinburgh (who was the first who projected and destined funds for maiden hospital in the city of Edinburgh) gave and granted a considerable dole to the said hospital, for which it was unanimously agreed that she should be assumed into the title as founder of the hospital:

And whereas in pursuance of the Act of 1707 there was made a constitution and rules for the carrying on of the said hospital under the name of "The Maiden Hospital, founded by Mary Erskine of Edinburgh and Mary Erskine":

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And whereas the said constitution and rules have from time to time been altered by the enactment of appendices and whereas in pursuance of the said constitution and rules the said hospital and the administration thereof is now vested in governors elected in accordance therewith (hereinafter referred to as "the Governors") who for many years have maintained the same for the use and education of daughters and granddaughters of decayed craftsmen in Edinburgh and other girls presented by donators to the said hospital:

And whereas the administration and maintenance of the said hospital and the premises in which it is situate threaten the Governors with a burden of rapidly increasing cost:

And whereas owing to changes in social conditions and responsibilities the needs which the hospital was founded to meet have almost ceased to exist and the continuance of the hospital is no longer necessary:

And whereas it is necessary to empower the Governors to dispose of the hospital and to expend the funds vested in them on kindred charitable and educational purposes and to confer on the Governors other powers as provided in this Order:

And whereas it is expedient that the Act of 1707 and the said constitution and rules should be amended as hereinafter provided:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Act confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936:

1936 c. 52.

Now therefore, in pursuance of the powers contained in the said Act, the Secretary of State orders as follows:—

(1) This Order may be cited as the Edinburgh Trades Maiden Short title, and Order 1969.

(2) This Order and the Act of 1707 may be cited together as the Edinburgh Trades Maiden Fund Acts 1707 and 1969.

In this Order unless there is something in the subject or context Interpretation. tant to such construction the following words and expressions have the meanings hereby assigned to them, that is to say:—

"Act of 1707" means the Act of Parliament of 25th March, 1707, referred to in the Preamble to this Order;

"fund" means the fund constituted by section 3 (The fund) of this Order;

"Governors" means the Governors for the time being elected in pursuance of the Act of 1707;

"hospital" means The Maiden Hospital, founded by the Craftsmen of Edinburgh and Mary Erskine.

The fund.

3. All property, both heritable and movable vested in the Gov at the commencement of this Order or acquired or donated to thereafter shall vest in them and shall constitute a fund, to be call " Edinburgh Trades Maiden Fund " for making provision as after provided for the daughters and granddaughters of crafts Edinburgh and other girls presented by donators to the fund and in terms of the constitution and rules affecting the fund for time being.

Application of fund.

4. Notwithstanding anything in the Act of 1707 the Governo apply any moneys forming part of the fund in payments or grants persons qualified in accordance with the provisions of this Order.

Qualification of beneficiaries.

5. The persons to whom payments or grants may be made by Governors in pursuance of the preceding section of this Order shall daughters and granddaughters of members of the Incorporations Craftsmen of Edinburgh and other girls presented by donators to fund under and in terms of the constitution and rules affect fund for the time being who, in the opinion of the Governors, require financial assistance in respect of or in connection with—

- (1) education;
- (2) ill-health; or
- (3) family need; and

who apply or on whose behalf application is made therefor to the Governors.

Investment of fund.

6. —(1) The Governors shall have power to invest the fund upon the following categories of investments:

- (a) investments in which trustees are authorised to invest funds according to the law of Scotland or the law of England for the time being;
- (b) heritable property in Scotland to be used for any purpose in connection with the carrying out of the purposes and objects of the fund or in any way connected therewith;
- (c) deposit receipts, bonds, debentures, debenture or loan certificates, whether convertible or not, mortgages or securities of any kind, whether issued by any corporation, company or body whether national, municipal, railway, public utility, commercial, industrial, investment, trust, mortgage, insurance, banking or otherwise registered or incorporated in the United Kingdom of Great Britain, Northern Ireland, Canada, Australia, New Zealand, Africa, the United States of America or in the Commonwealth of Europe or in or upon the guaranteed, lien, preferred, preferred or ordinary or deferred or common shares of or upon any securities whatsoever issued or issued or guaranteed by any such corporation, company or body and in the case of banks and insurance companies whether or not they are liable for calls or other payments.

(2) The investments or other assets of the fund may be taken in the names of the Governors or in the names of bank nominees or in such manner as the Governors in their discretion may consider convenient and appropriate and all receipts, discharges, renunciations, conveyances, dispositions, assignments, mandates and other necessary deeds and instruments shall if duly executed by a quorum of the Governors be a sufficient and effectual discharge to the persons to whom or in whose favour the same be granted.

The Governors shall have power to sell either by private treaty or by public roup all heritable property and movable property vested in them at the commencement of this Order in connection with the carrying on of the hospital and the proceeds of any such sale shall form part of the fund in accordance with the provisions of section 3 of this Order.

(1) The Governors shall have power at any annual meeting to appoint committees from among their number and to delegate to such committees any of their functions under the Act of 1707 and this

Committees appointed under this section shall hold office and transact their business in accordance with rules to be made by the Governors.

much of the Act of 1707 and of the constitution and rules of the hospital and so much thereof as is inconsistent with the provisions of this Order shall cease to have effect.

All costs, charges and expenses preliminary to and of the preparing for, obtaining and confirming of this Order otherwise in relation thereto shall be paid by the Governors.

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